



CITY COUNCIL MEETING

Council Chambers

Thursday, December 1, 2022

MINUTES

1. Call to Order and Roll Call:

Mayor Brockett called the meeting to order at 6:01 p.m.

Council Members present: Benjamin, Brockett, Folkerts, Friend, Joseph, Speer, Wallach, Winer, and Yates

Motion	Made By/Seconded	Vote
Motion to AMEND the agenda to: ADD: • Item 1A – Colorado Springs LGBTQ+ Community Support Declaration presented by Mayor Brockett • Item 1C – Consideration of a motion to Suspend the Council Rules of Procedures IV.a(5) to allow for 3 substantive public hearings REMOVE:	Brockett / Winer	Carried 9:0

• Item 1B – Consideration of a motion to approve the election returns from the 2022 Coordinated Special Municipal Election held on November 8, 2022 – MOVED to December 15th meeting due to the certification of the election not being received from the Boulder County Clerk until yesterday, Nov. 30th.		
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- A. Declaration in **Solidarity with Victims of Club Q Shooting** Presented by Mayor Brockett - **ADDED**
- B. **International Day of Persons with Disabilities Declaration** presented by Council Member Tara Winer
- C. ~~Consideration of a motion to approve the election returns from the 2022 Coordinated Special Municipal Election held on November 8, 2022 –~~ **REMOVED**
- D. Consideration of a motion to **Suspend the Council Rules of Procedures IV.a(5) to allow for 3 substantive public hearings – ADDED**

Motion	Made By/Seconded	Vote
Suspend the Council Rules of Procedures IV.a(5) to allow for 3 substantive public hearing	Friend / Benjamin	Carried 9:0

2. **Open Comment:**

(Public comments are a summary of actual testimony. Full testimony is available on the council web page at: <https://bouldercolorado.gov/city-council> > Watch Live or Archived Meetings.)

Open Comment **opened** at 6:15 p.m.

➤ **In-Person (Council Chambers):**

1. Jess Liu spoke on small businesses
2. ~~Shannon Derby~~ *withdrew*
3. Van Bruce Arrant spoke on gun ordinances
4. Tod Hatfield spoke on public safety
5. Kent Welley – *not present*
6. Mary Wright spoke on public safety
7. Lindsey Boyd spoke on public safety
8. Lawrie Boyd spoke on public safety
9. Evan Ravitz spoke on police oversight panel
10. Alex Cassidy spoke on the 6500 Arapahoe Annexation

➤ **Virtual**

1. Vicky Sama spoke on motorized vehicles
2. ~~Edmund Noyes~~ *withdrew*
3. ~~Mark Eller~~ *withdrew*
4. Lynn Segal spoke on affordable housing
5. Chuck Hardesty spoke on the 6500 Arapahoe Annexation
6. Clay Thompson spoke on the 6500 Arapahoe Annexation

Open Comment **closed** at 6:44 p.m.

3. **Consent Agenda**

- A. Consideration of a motion to accept **the November 10, 2022 Study Session Summary** regarding the **Transportation Core Arterial Network (CAN) Update**
- B. Consideration of a motion to adopt **Resolution 1325 establishing the Boulder Public Library District, appoint two members of City Council**, Aaron Brockett and Nicole Speer, to the Board of Trustee Selection Committee, and authorize the Chief of Staff to the Board of

County Commissioners of Boulder County to notify the Board of County Commissioners of the District's initial certification of the mill levy approved by the electors

- C. Introduction, first reading and consideration of a motion to order published by title only **Ordinance 8556 Use Table and Standards** Phase 2 Module 2; and setting forth related details
- D. Introduction, first reading, and consideration of a motion to order published by title only and **adopt by emergency measure Ordinance 8564 reestablishing the City of Boulder Property Tax Mill Levies** for 2022; providing that said levy be certified to the Boulder County Assessor; and setting forth related details
- E. Second reading and consideration of a motion to adopt **Ordinance 8561, updating transportation design standards by amending the City of Boulder Design and Construction Standards (D.C.S.)**, originally adopted pursuant to Ordinance 5986; and setting forth related details. Consideration of this ordinance is Transportation Standards Update (Phase 2) of the Design and Construction Standards

AND

Second reading and consideration of a motion to adopt Ordinance **8560, updating Section 6-6-6, "Protection of Trees and Plants," B.R.C. 1981 and Section 9-9-7, "Sight Triangles," B.R.C. 1981**; and setting forth related details

Natalie Stiffler, Interim Transportation and Mobility Director, and Gerrit Slatter, Civil Engineering Senior Manager, provided a presentation and answered questions from Council.

- F. Consideration of a motion to accept the **October 27, 2022 Study Session Summary** regarding **Boards and Commissions Process Discussion**

Motion	Made By/Seconded	Vote
Motion to PASS consent agenda items A - F with the appointment of Nicole Speer and Aaron Brocket for item 3B , as well as the amendment to bring forth community stakeholder engagement in for item 3C and, the language that was proposed to staff in regard to the crash studies and final language being consistent with vision zero, racial equity plan and transportation master plan goals for item 3D	Benjamin / Winer	Carried 9:0

4. Call-Up Check-In

A. **Water Service Agreement** with the Mapleton Home Association

Chris Douville, Deputy Director of Operations for Utilities, answered questions from Council.

NO ACTION

B. **Concept Plan Review and Comment** for the redevelopment of a 2.33 acre area including the properties generally known as **2504, 2506, 2536, and 2546 Spruce St., 2055 26th St., and 2537 Pearl St., with 101 residential units and 160 Parking spaces** and amenities for residents. The proposal includes 88 market rate and 13 affordable on-site condominiums. Reviewed under case no. LUR2022-0003

Motion to call up made by Council Member Friend and seconded by Council Member Folkerts. Motion Carried 9:0.

CALLED-UP – to be scheduled for a public hearing.

C. **Vacation of a shared access easement at 5330 Sterling Drive (ADR2022-00270)**

NO ACTION

5. Public Hearings

- A. DRCOG Board Update and Consideration of a motion to **approve the proposed list of projects for submittal to the Denver Regional Council of Governments for the 2024-2027 Transportation Improvement Program** subregional process

Council member Speer and Jean Sanson, Principal Transportation Planner, provided a presentation and answered questions from Council.

The public hearing **opened** at 7:50 p.m. and the following spoke:

1. Jess Liu – *Withdraw*

public hearing **closed** at 7:50 p.m.

Motion	Made By/Seconded	Vote
Motion to APPROVE the proposed list of projects for submittal to the Denver Regional Council of Governments for the 2024-2027 Transportation Improvement Program subregional process	Speer / Wallach	Carried 9:0

- B. Second reading and consideration of a motion to **adopt Ordinance 8558 approving supplemental appropriations to the 2022 Budget** and discussion of the **ARPA funding priorities**; and setting forth related details

Mark Woulf, Senior Budget Manager and Elizabeth Crowe Deputy Director of Housing and Human Services, provided a presentation and answered questions from Council.

Kurt Firnhaber, Director of Housing and Human Services and Matthew Chasansky, Arts and Culture Manager also answered questions from Council.

The public hearing **opened** at 9:13 p.m. and the following spoke:

➤ **In-Person:**

1. David Fulker
2. Kari Palazzari
3. Christy Gunter – ***not present***
4. Julie Van Domelen

public hearing **closed** at 9:26 p.m.

Motion	Made By/Seconded	Vote
Motion to ADOPT Ordinance 8558 approving supplemental appropriations to the 2022 Budget and discussion of the ARPA funding priorities ; and setting forth related details	Yates / Winer	Carried 9:0

Council requested staff to investigate allocating an additional of 100k for arts funding.

Mayor Brocket called for a break at 9:43 p.m. and council reconvened at 9:46 p.m.

C. **Mayor Pro Tem Election**

The public hearing **opened** at 9:48 p.m. and the following spoke:

➤ **In-Person:**

1. Chase Cromwell
2. Matt Hess
3. Claudia Thiem

➤ **Virtual:**

1. Jeremy Reynolds
2. Katie Farnan
3. Emily Reynolds
4. Schuyler Bailey
5. Karen Hollweg
6. Martha Palmer
7. Michael Schreiner
8. Jorge Boone
9. Doug Hamilton
- 10. ~~Claudia Thiem~~ – *spoke in person***
11. Lisa Spalding
12. Ryan Schuchard
13. Kristian Kerr
14. Sarah Silver
15. Matt Bissonette
16. Lucy Carlson-Krakoff
17. Chelsea Castellano

The public hearing **closed** at 10:19 p.m.

Mayor Brockett opened the nominations for Mayor Pro Tem.

Council Member Yates nominated Council Member Wallach.

Council Member Folkerts nominated Council Member Speer.

Council Member Friend made a motion to close the nominations. Council member Joseph seconded the motion. Motion carried 9:0.

City Clerk, Elesha Johnson, flipped a coin to see who would speak first. Heads was Council Member Speer and Council Member Wallach was tails. The coin landed on heads, and Council member Speer spoke first.

Council members Folkerts, Yates, Joseph, Mayor Brockett, Winer, Benjamin and Friend provided statements.

The City Clerk flipped a coin to determine which candidate will be voted on first. It was heads and Council Member Speer's vote went first.

Results: 3 Council Members (Folkerts, Speer and Joseph), raised their hand in favor for Council Member Speer and 6 Council Members (Benjamin, Brockett, Friend, Wallach, Winer, and Yates), raised their hands in favor for Council member Wallach.

Council Members Speer and Wallach offered gratitude to all the support they received.

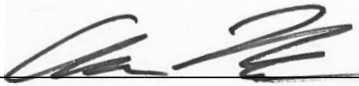
Council member Wallach was elected as Mayor Pro-Tem for a 1-year term.

6. **Matters from the City Manager**
7. **Matters from the City Attorney**
8. **Matters from the Mayor and Members of Council**
9. **Discussion Items**
10. **Debrief**
11. **Adjournment**

There being no further business to come before Council at this time, by motion regularly adopted, the meeting was adjourned by Mayor Brockett at 10:50 p.m.

Approved this 16th day of February 2023.

APPROVED BY:



Aaron Brockett, Mayor

ATTEST:



Elesha Johnson, City Clerk